

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN SIERRA LEONE

Complete Community Opposition How-To

This guide uses the terms and bodies you'll actually run into in Sierra Leone — the EIA and the licence, the Environment Protection Agency, protected-area status, the courts up to the Supreme Court, land title and the constitutional protection of property, the public petition — and explains each in plain words the first time.

INTRODUCTION & FRAMEWORK

At **Black Johnson**, a secluded beach on the peninsula south of Freetown — rainforest rising behind it, sheltering chimpanzees and pangolins; a lagoon breeding the fish that feed the coast; sea turtles nesting on the sand — the government announced in 2021 a plan to hand over **more than a hundred hectares** for a large **Chinese-funded fishing harbour**, widely and credibly feared to include a **fishmeal factory** that would grind the small fish the nation eats into feed for export. The people who knew the place would not accept it. Landowners, fishing communities, conservationists, and ordinary citizens raised a storm — a **petition of more than twenty thousand names**, a wave of national and international attention, the **Save Black Johnson Beach** campaign — that forced the government to conduct an environmental assessment and, ultimately, forced the matter into court. And there they won it all the way to the top: on **6 February 2025, the Supreme Court of Sierra Leone** ruled in the landowners' favour (*Pratt v. Minister of Lands*), holding that the government could not seize privately owned land without due process, and **permanently ended** the plan for a harbour or fishmeal factory. A single beach, defended by its people and their allies, was saved for good.

The Save Black Johnson Beach coalition — fishing communities, landowners, and conservationists — that stopped a foreign-funded harbour and won it in the Supreme Court drew on a toolkit whose sharpest edge was land title. A project needs an **environmental impact assessment (EIA)** and licence from the **Environment Protection Agency (EPA-SL)**, with public consultation. **Protected-area status** (like a national park) constrains it. The **courts run up to the Supreme Court**, and the **Constitution protects property** (Section 21) against seizure without due process — the ground on which Black Johnson was won, since the landowners held title and the state could not take it without due process; protest, petition, and litigation are lawful. **Land title** — private or customary — is a real ground, and a **public petition** with national and international attention is a powerful lever. But these tools have real limits, and this guide states them plainly. Not every community holds clear private title — much land is held under customary tenure through chiefdoms — so the property route that won Black Johnson won't be available everywhere; the fight took **years**, from the 2021 announcement to the 2025 judgment; and across West Africa the **fishmeal industry keeps pressing**, so a win in one place is not the end of the threat. So aim for what these tools can deliver — a project stopped, land secured, a permit quashed, delay, and exposure — knowing the surest wins bind a legal ground to a public storm.

The Whole Strategy in One Idea

A big project looks unstoppable, but it's a chain of approvals and claims, and a chain breaks at its weakest link. A large Sierra Leonean project needs its **EIA and licence**; if it seizes **titled land**, it runs into the constitutional protection of property; if it's in a **protected area**, it runs into that status; it can be challenged in

the **courts up to the Supreme Court**; and it depends on public acquiescence a **petition and a storm** can strip away. Every one of those is a link you can grab. **Find the one closest to your hand and pull.**

Be Honest About Which Fight You're In

Before you spend a year on this, work out your real situation:

- **If your community holds land title, the constitutional protection of property is a sharp lever** — the state cannot take titled land without due process, as Black Johnson proved.
- **If it's in a protected area or the EIA was skipped, those are real grounds** — the storm at Black Johnson forced an EIA.
- **If a public storm can be raised — a pristine place, endangered species, threatened fishers — a petition and attention can force the government's hand.**
- **If land is held under customary/chiefdom tenure, the property route is harder** — lean on the EIA, protected-area status, the courts, and the public, and secure your tenure claim as best you can.

Read the whole guide once before you move. Two habits run through it: **bind a legal ground to a public storm** — the land title or protected status, and the petition and attention — and **run every front at once**: the documents, the consultation, the courts, the coalition, the press. That's how Black Johnson was won.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides

A project needs an **EIA licence** from the **EPA-SL**, granted after assessment and public consultation. Sector ministries (like Lands, or Fisheries) grant the land or resource rights — but where land is **privately titled**, the **Constitution protects it** from seizure without due process, and where it's held under **customary tenure**, chiefdom authorities and communities have rights. **Protected-area status** constrains development. And above all sit the **courts**, up to the **Supreme Court**, which review the legality of decisions and protect property and rights. Know which decision or claim you can contest, and aim there.

How a Project Moves — and Where You Jump In

The EIA and consultation. A significant project needs an **EIA** with consultation. *Your opening — and a storm can force it into being:* take part, put your objections on the record, and attack the assessment's flaws.

The land grant. The state moves to hand over or seize the land. *Your opening — the one that won Black Johnson:* assert your **land title** and the constitutional protection of property, or your customary tenure.

The licence and construction. *Your opening:* a defective licence, a protected area harmed, land seized without due process — all challengeable in the courts.

Follow the Money and the Permissions

Dig up three things. **Who's behind it and who owns them** — including any foreign government or company, whose reputation you can reach. **What land it needs and who holds it** — because titled land, and the constitutional protection of property, may be your sharpest lever. **What it still lacks** — the EIA not done, the licence not granted, the seizure not completed: whatever's missing is the soft spot.

Who's Supposed to Be Watching

Each is an ally or an arena. The **EPA-SL** runs the EIA and licence. The **courts**, up to the **Supreme Court**, protect property and review decisions. **Protected-area status** is a shield. And Sierra Leone's **land-owner groups, fishing communities, conservationists (like Green Scenery), international networks (like Greenpeace Africa), and a lively press** are the forces that reach furthest — the coalition that saved Black Johnson.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether you hold land title, whether a protected area is engaged, whether a public storm can be raised, and how determined the government is.

What you do	Roughly works	How long	Cost	What "works" means
Just gather documents	5–10%	weeks	low	The base for everything else
Objections in the EIA consultation	15–35%	during EIA	low	On record; conditions or a redo
Assert land title / constitutional property	30–55%	months–yr	low–mod	Seizure blocked; land secured (Black Johnson)
Protected-area status lever	30–55%	varies	low	Project barred where the park is engaged
Public petition + national/international storm	30–55%	weeks–months	low	Government forced to pause / assess
Court challenge up to the Supreme Court	30–55%	1–3 yr	mod	Decision quashed; land secured permanently
Coalition (owners + fishers + conservationists)	25–50%	months–yr	low	Pressure; delay; political cost
Everything together (title, protected area, storm)	45–65%	1–3 yr	mod	Stopped, secured, quashed, delayed
Everything together (customary tenure, determined state)	20–45%	1–3 yr	mod	Delayed; assessed; exposed

The levers that move the needle most are **land title and the constitutional protection of property**, the **courts up to the Supreme Court**, and a **public petition and storm**, bound to a broad coalition. Black Johnson shows the ceiling (a foreign megaproject permanently stopped) and the honest floor (it turned on private title, took years, and the fishmeal threat keeps pressing). So aim for a project stopped, land secured, a permit quashed, delay, and exposure — and keep watch.

On cost: the consultation, the petition, and organising are cheap; and the courts, up to the Supreme Court, proved reachable at Black Johnson. Conservation groups and international networks bring expertise and amplify the storm. The great strength is binding a legal ground to a public storm — the combination is what wins.

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this land title, this protected area, this skipped EIA — is strong. Answer five questions in writing.

1. What is it, and who's behind it? Name the project, the company, any foreign government, and the financiers whose reputation you can reach.

2. Where is it, who holds the land, and what does it touch? Establish **who holds the land and how** (private title or customary tenure), and map it over **protected areas**, forest, lagoon, fishing grounds, and endangered species. **Land title, and a protected area, are your sharpest levers** — Black Johnson turned on private title.

3. What stage is it at, and what's the next deadline? Was the deal announced or signed? Is an EIA due (a storm can force it)? Is the land being seized (opening the property claim and the courts)? These openings are time-bound.

4. What does it still need that it lacks? The EIA not done, the licence not granted, the land not yet seized. The missing piece is the soft spot.

5. What raises a storm, and who's your coalition? A pristine beach, endangered species, threatened fishers — and landowners, fishing communities, conservationists, the public. Black Johnson bound all of these.

What this looks like in real life. A community learns a foreign-funded project threatens its titled land, its protected forest, and its fishing grounds, on a deal done over its head. The five questions yield: a company and foreign backer; titled land and a protected area at stake (the levers); a deal announced and an EIA to force; land being seized; and a coalition of owners, fishers, and conservationists. That's the Black Johnson pattern — assert the title and property protection, force the EIA, raise the storm, and go to court.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof — and at Black Johnson the decisive proof was the land title. Build it in three layers.

Layer one: the land and the paper trail. Establish **who holds the land and how** — title deeds, survey plans, customary records — because that is your sharpest lever. Then get the documents the decision rests on — the deal, the EIA (or its absence), the licence, the protected-area status. Read the EIA hard for flaws — an understated impact on the lagoon, the forest, the fish, or endangered species.

Layer two: the ground truth. Dated, located photographs and video of the beach, forest, lagoon, and fishing grounds — baseline images before any damage most of all — and the testimony of affected landowners and fishers. Marshal the evidence on the **endangered species and the fish-breeding grounds** — the storm's fuel.

Layer three: the map of title, protection, and harm. Lay the project over your titled or customary land, the protected area, and the fishing grounds, so the property claim and the harm are undeniable. Walking into the EPA, the courts, or the press with the title, the science, and that map is what makes them act.

WHAT TO GATHER, AND WHERE TO FIND IT

- **Land title and tenure records** — deeds, survey plans, customary claims — your sharpest lever.

- **The deal, the EIA (or its absence), the licence, protected-area status** — from the EPA-SL and the ministries.
- **Ownership and financing** — the company and any foreign government.
- **The title-protection-harm map** — your land, the protected area, and the fishing grounds, laid over the project.
- **Dated site evidence, species and fishery science, and named testimony** — photographs marked with date and place, and owners' and fishers' statements.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; a coalition and a storm give you power — the Black Johnson template. Build in four moves.

Start with a tight core. The landowners and fishers most affected, the people who know the beach and forest, a few tireless organisers, and respected local figures.

Bind owners, fishers, and conservationists. Black Johnson's strength was breadth — landowners with title, the fishing communities who lived off the waters, conservationists who knew the species and the law, and the wider public. That combination is broad and hard to dismiss. Reach the conservation groups and international networks who can amplify the storm.

Raise the storm. A petition, national coverage, international attention — Black Johnson's 20,000-signature petition and media storm forced the government to assess and, in time, to lose. Give the public a clear cause: a pristine beach, endangered species, threatened fishers.

Build to last. Sierra Leonean fights, and the litigation, run for years. Build clear roles, a secure shared archive, a way to decide together, and a plan for the financial and emotional toll — and, if direct action is contemplated, get legal advice first.

STEP 4: LEGAL CHALLENGES, LAND TITLE & THE COURTS

Law is Sierra Leone's sharpest lever, because land title and the constitutional protection of property, tested up to the Supreme Court, can secure a place for good.

Land Title and the Constitutional Protection of Property

The route that won Black Johnson: where your community holds **land title**, the **Constitution protects it** (Section 21) from seizure without due process — the state cannot simply take titled land for a project. Assert your title, and challenge any seizure as unconstitutional. This is your sharpest lever where you hold title; where land is held under **customary tenure**, secure and assert that tenure, and lean more on the other levers.

The EIA and the Public Storm

Take part in the **EIA** and consultation and attack its flaws — and where an EIA was skipped, a **public storm** can force one into being, as it did at Black Johnson, exposing the project and buying time.

The Courts, up to the Supreme Court

A defective licence, a protected area harmed, or an unconstitutional seizure can be challenged in the **courts**, on up to the **Supreme Court**, which at Black Johnson delivered a final, permanent judgment. The

courts here are a reachable, decisive lever.

The Honest Limits

Straight talk: land title, the property protection, and the courts are powerful, but the winning route turned on **private title** not every community holds, the fight took years, and the fishmeal and land pressures keep pressing across the region. So use the strong tools — the title and property protection, the EIA and the storm, the courts to the Supreme Court, protected-area status — pair them with the coalition and the press, keep watch, and count a project stopped, land secured, a permit quashed, delay, and exposure as wins.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

Title becomes a constitutional shield. Not "we oppose the harbour" but *"this is our titled land, and the Constitution forbids the state to seize it without due process."*

A skipped EIA becomes a demand. *"They announced a megaproject with no assessment — the law requires an EIA, and the public a say."*

A protected area becomes a legal bar. *"This sits in a protected forest and a fish-breeding lagoon the law already protects."*

The harm becomes a public storm. *"A pristine beach, nesting turtles, the fish that feed the nation — handed to a foreign factory over our heads."*

Match it to the venue: the title to the courts and the property claim; the skipped EIA to the EPA and the storm; the protected area to the courts; the harm and the endangered species to the petition and the press.

STEP 5: MEDIA STRATEGY

In Sierra Leone, a public storm is a decisive lever — Black Johnson's petition and coverage forced the government's hand — and international attention reaches a foreign backer. A lively press and conservation networks make the media front central.

Lead with the beach, the species, and the people, not procedure. Not "the EIA was skipped" but "a pristine beach, nesting turtles, and the fish that feed the nation, handed to a foreign factory over the people's heads." Use your strongest material: the land title, dated photographs, the species and fishery evidence, the map, and any court action banked.

Work several audiences at once. Local and national press build the storm; international conservation and fisheries networks reach the endangered-species and fishmeal story and the foreign backer, where it's most exposed. Make it easy: captioned photos, accurate summaries, a map, strong interviews.

Two hard rules. Accuracy above all — one exaggeration can discredit everything. And protect people — get legal advice before any direct action, and let the coalition shape the story.

EMAILS & LETTERS

Make them your own; keep them short, exact and calm; keep a copy of everything.

8A — Information request (to the EPA-SL / ministry).

Subject: Information request — [project].

"We, residents and landowners of [place], request the agreement, the EIA (or confirmation none was done), the licence, and the protected-area status for [project] at [location]. [Contact.]"

8B — Asserting land title (to the ministry / developer).

Subject: Our titled land — [project].

"We, the landowners of [place], hold title to this land. Under Section 21 of the Constitution it cannot be seized without due process. We do not consent to [project] and will defend our title. [Attach title evidence.]"

8C — Objection / demand for an EIA.

Subject: EIA and objection — [project].

"We, residents of [place], object to [project] and demand a full EIA with genuine consultation: [it destroys our protected forest, lagoon, and fishing grounds]. [Attach evidence.]"

8D — To a conservation organisation / lawyer.

Subject: Possible court action — [project].

"Our community faces [project] on our titled land, in a protected area, with [no proper EIA]. We've gathered [our title, the science, photographs]. We ask for your help to assert our property rights and challenge it in the courts, as at Black Johnson. [Contact and evidence summary.]"

8E — Supreme Court / court challenge (instructing counsel).

Subject: Challenge — [project] / seizure of our land.

"We instruct you to challenge [the seizure of our titled land / the licence] for [project], on the grounds that [it violates the constitutional protection of property / the EIA was skipped / the protected area is harmed], up to the Supreme Court if needed. [Attach the title and our evidence.]"

8F — To a foreign government or company.

Subject: Legal, environmental, and reputational risk in [project].

"We are the landowners and community affected by [project] at [location], backed by your [government / company]. It seizes our titled land and destroys a protected area, and faces legal challenge. As at Black Johnson, this carries real risk. [Contact and evidence summary.]"

8G — Letter to the press / a petition.

Subject: Save [place] from [project].

"For generations the people of [place] have lived from [these waters and this forest]. Now [project] threatens [our beach, our turtles, our fish]. Sign our petition and stand with us. We can provide photographs, the science, a map and interviews. [Contact.]"

8H — Rallying the coalition.

Subject: We can save our beach — here's how.

"[Project] threatens [our land and sea]. At Black Johnson, landowners, fishers, and conservationists raised a 20,000-name storm and won in the Supreme Court. With our land title, the courts, and a public storm behind us, we have a real chance. Please join us. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean, do these six things, in order:

1. **Establish who holds the land and how — and assert title and the constitutional protection of property (8B).** That's your sharpest lever.
2. **Demand an EIA and object (8C) — a storm can force one into being.**
3. **Request the documents (8A), and read any EIA for flaws.**
4. **Photograph everything, with dates and places, and gather the species/fishery evidence.**
5. **Reach a conservation organisation and a lawyer (8D), and prepare a court challenge (8E).**
6. **Raise a public storm — petition, national and international attention (8G/8H).**

Even lean, those six bind the land title to a public storm and the courts — the Black Johnson template.

WHEN THE SYSTEM IS TILTED

Sierra Leone's tools are real, but the field can be tilted, and you must plan for it.

When the government backs the project. Don't fold: assert your title and property protection, raise a public storm, and take it to the courts up to the Supreme Court — where Black Johnson prevailed.

When land is held under customary tenure. The private-title route is harder. Secure and assert your customary tenure, and lean more on the EIA, protected-area status, the courts, and the public.

When the EIA is skipped. A public storm can force one — and a project announced without an assessment is on weak legal ground.

When the threat keeps pressing. The fishmeal industry keeps pushing across West Africa. Keep the coalition alive, and support the next community in line.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

Sierra Leone has real problems with opaque land and resource deals and the closeness of foreign investors to officials, so this matters.

How to spot it. Land handed over in secret; surveys done without the owners' knowledge; EIAs skipped or written for the proponent; benefits to the connected while communities lose their land and fisheries.

Who's supposed to guard against it. The **Anti-Corruption Commission** handles graft. The **Audit Service** examines public money. The **courts**, up to the Supreme Court, can quash a tainted decision and protect property. And Sierra Leone's **press and civil society** have exposed captured deals.

How to fight it safely. Document precisely and factually — how the land was taken, what was hidden, what the law and the Constitution required — and keep clear the line between what you can prove and what you suspect. Route serious evidence to the Anti-Corruption Commission, the Audit Service, the courts, and trusted journalists rather than making accusations you can't back. Pair the exposure with the property claim and the public storm.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together. The land title and documents build your proof; the property protection and protected status aim it; a coalition of owners, fishers, and conservationists is the muscle; the EIA, the storm, and the courts press the case; the media raises the cost and rallies the nation. Together they multiply. One at a time, they stall — and keep watch after a win.

Early on (weeks 1–8): establish and assert your land title; demand an EIA and object; request the records; photograph the baseline and gather the science; build a broad coalition and raise a petition.

In the thick of it (months–years): assert the constitutional property protection; challenge the seizure or licence in the courts; open the media front, national and international.

The long haul (years): carry the litigation to the Supreme Court if needed; keep the coalition and the storm alive; hold the line for a project stopped, land secured, a permit quashed, delay — and keep watch, because the pressure returns.

FINAL ASSESSMENT

Stopping a destructive project in Sierra Leone can be done — landowners, fishers, and conservationists stopped a foreign-funded harbour and won it permanently in the Supreme Court, saving a single beach for good. Hold both truths. Sierra Leone's tools are real: an EIA and licensing system with consultation; protected-area status; land title and the constitutional protection of property; courts that reach up to the Supreme Court; and the power of a public petition and storm. And the constraints are real: a winning route that turned on private title not every community holds, years-long fights, and a fishmeal and land pressure that keeps returning.

Here's the discipline that wins. Establish who holds the land and how, and assert your title and the constitutional protection of property — the ground that won Black Johnson. Demand an EIA and object, and where it was skipped, raise a public storm to force one. Bind landowners, fishers, and conservationists into a broad coalition, gather the science on the endangered species and the fish-breeding grounds, and raise a petition and national and international attention. Then take it to the courts, up to the Supreme Court, which can secure a place for good. Keep watch, because the pressure returns. Count a project stopped, land secured, a permit quashed, delay, and exposure as wins. That's what Black Johnson did — the land title, the coalition, the storm, and the courts together. So can you.